



(Don't Write
anything in this Area)

Q8. (a) Describe the problems of Universal definition of marriage. (15 marks)

As per Herskovitz; Marriage is the union between a Man & a women & children born to them are legitimate offspring's of couple.

Problem with such definition :-

① union between a man & a women:-

- ⇒ Female - Female Nayar marriage's.
- ⇒ Ghost marriage's; Polygamy/Polygyny.
- ⇒ Sologamy marriage (Gujarat Case).
- ⇒ Recent marriage of Mexican Mayor Victor Hugo with an alligator (2022)
- ⇒ Bantu people marrying with a Cattle.
- ⇒ Male-Male marriages (Gay relations).

② Legitimacy of the offspring :-

⇒ Legitimacy to child should be social approval; not legal one.

e.g. In Yoruba Tribe of Africa; a woman needs to have kid with husband's relative for legitimacy to their own kids.

~~Kathleen~~ ② Definition of legitimacy by Malinowski :-

Marriage is a relation such that women gets socially approved husband and children get socially approved father. Such definition only defines what is legitimate but falls short of defining nature of marriage.

③ Kathleen Gough after studying Nayars of Kerala gave following definition:-

Marriage is a union between a woman

and one or more individuals such that the children born to women; not prohibited by rules of relationship; are given full birth rights available to other individuals of the society.

Exceptions :-

- Bantu people marrying Cattle.
- Male-Male marriages.
- Sologamy.

Hence, from the above discussion's we can conclude that ~~can~~ although marriage is a universal institution; ~~by~~ but universal definition of marriage is not possible due to varying needs in different societies from the institution of marriage.